CHRISTINE ACHITSONGORERI

VERSUS

MILDRED HOVE

AND

THE ADDITIONAL ASSISTANT MASTER, KWEKWE

HIGH COURT OF ZIMBABWE
MPOKISENG DUBE J
BULAWAYO 25 NOVEMBER 2025 & 24 FEBRUARY 2026

Opposed application- application for review

T.Tashaya for the applicant
1st respondent in person
No appearances on behalf of the 2nd respondent

MPOKISENG DUBE J: This is an opposed application for review brought in terms of Rule 62 of the High Court Rules, 2021. The applicant seeks the following relief:

1. That the application for review be and is hereby granted

2. That the decision by the 2nd respondent to accept 1st respondent's unilateral actions of making an inventory and public notices to creditors and debtors without the knowledge and consent of applicant be and is hereby set aside.

3. That a new inventory be prepared and public notices to creditors and others be advertised by both applicant and 1st respondent within two months of this order.

4. The 1st respondent to pay costs of suit.

The applicant's basis for seeking this order are the allegations against the 2nd respondent that on 2 December 2025, committed gross irregularities by confirming and accepting the 1st respondent's unilateral actions in administering the estate and further condoning her alleged breach of fiduciary duties related to the ascertainment of lawful beneficiaries. The 1st respondent opposes the application on the basis that the applicant is not doing anything towards the finalization of the estate and has been deliberately stalling progress.

Factual Background

The applicant is Christine Achitsongoreri, mother of the deceased and duly appointed Co-executrix dative to the Estate Late Kidwell Achitsongoreri DRKK 77/23. The 1st respondent is Mildred Hove, the alleged surviving customary law spouse and the applicant's co- executrix dative in the said estate. The 2nd respondent is the additional assistant master, Kwekwe cited herein in his official capacity, whose determination handed down on 2 December 2024 forms the subject matter of this review application.

From a reading of the record, the following is established: The deceased, Kidwell Achitsongoreri, passed away on 6 April 2023. He was customarily married to the 1st respondent, Mildred Hove, and three children were born from their union. However, according to the applicant, prior to his death, Kidwell Achitsongoreri had separated from the 1st respondent, having given her a divorce token on 13 March 2022, and had moved back to reside at the applicant's home where he met his demise.

The applicant alleges that the separation was due to the deceased's suspicion of the 1st respondent's infidelity, which resulted in the deceased expressing uncertainty regarding the paternity of the three children. The 1st respondent on the other hand, disputes this stating that she was still married to the deceased and that the three children were born between her and the deceased. The existence of this material dispute of fact forms the basis of the dispute over the winding up of the estate.

Following the death of Kidwell Achitsongoreri, bitterness arose between the families, leading to a contested process concerning the appointment of the executor dative under case DRKK 77/23. Given the dispute, the 2nd respondent (or the Master's office) appointed the applicant, Christine Achitsongoreri, and the 1st respondent, Mildred Hove, as Co-Executrices Dative.

The two executrices therefore had a mandate for joint administration of the estate. The applicant however alleges that the 1st respondent commenced unilateral actions in the administration of the estate. These included preparing an inventory and publishing public notices calling upon creditors and debtors in both the local newspaper and the Government Gazette. It is further alleged that these administrative steps were undertaken without the knowledge or consent of the applicant, the co- executrix. When the applicant became aware of the 1st respondent's actions, she wrote through her legal practitioners formally objecting to

this. When the letters went unanswered, the applicant filed submissions concerning these unilateral actions and alleged breaches of fiduciary duty. The 1st respondent also filed hers and the 2nd respondent determined the matter. It is the 2nd respondent's determination which forms the basis of this application.

Issues for Determination

1. Whether or not the 2nd respondent erred in law or committed a gross irregularity by confirming and accepting the 1st respondent's unilateral administration actions (making an inventory and public notices to creditors and debtors) despite the express requirement that co-executors must act jointly.
2. Whether the actions of the 1st respondent of making an inventory and public notices without consulting the applicant, is in breach of her fiduciary duty as co- executor amounts to gross irregularities that warrant review of the 2nd respondent's decision.

The Law

Judicial review is a legal process which is meant to ensure that administrative bodies act within the bounds of their statutory duties and adhere to principles of administrative justice. In this case, the court's intervention is limited to reviewing the regularity of the proceedings by an administrative body and the decision making process.

In *African Tribune Newspapers (Pvt) & Ors v Media & Information Commission & Anor* 2004(2) ZLR 7(H) this court held that:

> "Unreasonableness has an extremely limited, even an insignificant, role as a ground of review in our law. Judicial review is concerned not with the correctness of the decision but with the decision- making process. A review court can only set aside a decision if it is satisfied that the decision was so grossly unreasonable that no reasonable person applying his mind to the facts before him would have come to that conclusion."

In the case of *Chitindigu v Mudede N.O and Ors* HH 428-18 CHITAKUNYE J (as he then was) commented as follows:

> "…… a review does not and ordinarily should not address the merits or correctness of a decision but the decision- making process. In short, the grounds for review must relate to issues of a procedural nature such as irregularities in the process, lack of jurisdiction, *audi alteram partem* principle, bias, and failure to conduct proceedings in a fair and transparent manner. Where the decision making process is not being challenged such a matter may not be for review"

A decision by the Master of the High Court can be successfully challenged and set aside if it is found to be irregular, un procedural and therefore illegal, or if it is shown that a gross irregularity occurred. Specifically, challenges to directions or decisions of the Master concerning objections to a liquidation and distribution account, which effectively constitute a direction under Section 52(9) of the Administration of Estates Act [*Chapter 6:01*], are properly brought by way of review. This legal position was affirmed in *Van Niekerk v Master of the High Court and Others 1998 (1) ZLR 418 (H)* and upheld on appeal in *Van Niekerk v Van Niekerk and Others 1999 (1) ZLR 421 (S)*.

Application of the Law to the facts

The applicant's first ground for review is based on the nature of the co-executorship mandate. The Administration of Estates Act mandates that appointed executors dative owe a paramount fiduciary duty to the estate, which entails protecting the interests of the heirs and creditors.

When multiple executors are appointed, they hold a joint mandate. The applicant correctly states that if more than one executor is appointed, they are required to act jointly, meaning no one executor can act alone without the consent of the other executors. This requirement for joint action extends to all fundamental steps of estate administration, including the preparation and filing of the inventory, the valuation of assets and liabilities, and the publishing notices calling upon creditors and debtors.

Actions undertaken by one co-executor, such as preparing the inventory and Liquidation & Distribution account or placing advertisements without the co-executor's knowledge or formal consent, are *ultra vires* and are, in law, procedural nullities. The 2nd respondent's primary supervisory function is to ensure that the administration adheres to the letter of the law. The determination by the 2nd respondent on 2 December 2024, confirming these procedurally flawed, unilateral steps as proper and legitimate, amounted to the judicial endorsement of a nullity. This constituted a gross irregularity which must be rectified on review.

The applicant also brings forward the 1st respondent's failure to investigate the contested heirship, a lapse that the Master condoned. I must comment that this is not subject of review proceedings. However it is indeed advisable for the parties to attend paternity tests in order to ensure that the assets of a deceased are distributed to the lawful and real beneficiaries.

The facts of this matter clearly indicate that the deceased had separated from 1st respondent due to the accusations of infidelity and thus had doubts concerning the paternity of the three children. The applicant, in her capacity as a co- executor insisted that DNA tests be conducted to ensure that the right beneficiaries benefited. The 1st respondent's refusal to consent or cooperate with this investigation is a deliberate attempt to evade accountability. In the case of *Chitindigu v Mudede N.O and Ors*, HH 428-18, the court dealt with a matter involving co-executors and the discovery of an additional child whose existence required investigation. While the jurisdiction to compel DNA testing has historically been subject to complex limitations in some common law systems, modern Zimbabwean law demands that where reasonable doubt exists regarding the identity of heirs, and where that doubt is rooted in the deceased's own actions (separation due to infidelity) and is raised by a co-fiduciary under oath, the executor has a duty to take steps to clarify the heirship before the Liquidation & Distribution account is finalized.

The 2nd respondent erred by allowing the administration process to proceed towards distribution when the question of who the beneficiaries are remained unresolved and contested by a co-executor acting diligently in her fiduciary role. The Master's failure to stop the process or direct an investigation constitutes a reviewable failure in his supervisory duty over the administration of estates.

Costs

I find no reason to make a special order for costs.

In conclusion therefore, this application is found to be with merit and therefore succeeds.

Disposition

In the foregoing, an order be and is hereby granted as follows:

1. The application for review be and is hereby granted.
2. The decision by the 2nd respondent to accept 1st respondent's unilateral actions of making an inventory and public notices to creditors and debtors without the knowledge and consent of applicant be and is hereby set aside.
3. A new inventory shall be prepared and public notices to creditors and others be advertised by both applicant and 1st respondent within two months of this order.

4. The 1st respondent to pay costs of suit on an ordinary scale.

C.T Mugabe & Associates, applicant's legal practitioners